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Rehumanizing the Disappeared: Spaces of Memory in Mexico and the Liminality of Transitional Justice

Sylvia Karl

The fact that you don't know if he is alive, if he is getting enough to eat, if he is cold or what happened to him is so hard to deal with.

—Doña Maria

Spaces of memory are spaces of rehumanization of victims of violence.¹ The heterogeneous practices and discourses of the relatives of the disappeared all over the world can be considered processes of rehumanization. But what if hardly anyone knows about the disappeared? What if practices and discourses of memory are limited to the countermemory of specific groups because both the conflict in the past and the present of the survivors is still silenced and marginalized? This is the case in Mexico. “There are disappeared people and a dirty war in Mexico?” some non-Mexicans often ask. But there are also Mexicans who still do not know anything about the dirty war that took place in the 1960s and 1970s, when state actors persecuted members of political opposition groups. The invisibility of this war and its victims has to do with the specific Mexican political system, the state discourses that support it, media censorship, and selective repression. Unlike other Latin American countries where it is well known that people were abducted and disappeared during repressive military regimes in the 1960s and 1970s, in Mexico the dirty war is still invisible.

This article addresses the Mexican *guerra sucia* (dirty war) and the fight for the rehumanization of the families of the disappeared. Based on empirical research with conflict survivors in the district of Atoyac de Alvarez (state of Guerrero) and in Mexico City, the article focuses on memory politics and the different subjects of memory processes. It also provides a critical view of the transitional justice process in Mexico. I argue that processes of transitional justice can imply a rehumanization of victims in addition to the widespread discourse of reconciliation and peace that transitional justice advocates proclaim as goals of these processes. I suggest that the unresolved status of liminality of

victims of disappearances on the micro level is connected to national political processes of the liminality of transitional justice. Describing different practices and discourses of families of the disappeared and conceptualizing them as processes of rehumanization, the article shows the multiple transitional frictions in the Mexican case.² Reflecting on the violence in the current “war on drugs” and the recent opening of the first memory museum in Mexico, the Casa de la Memoria Indómita (House of Untamed Memory), I also argue that memory practices around the disappeared in Mexico continue to be part of a social countermemory rather than of collective or national memory.

Enforced Disappearances in the Mexican Dirty War

Mexican governments, like other governments all over the world, employed enforced disappearance as a repressive method of state terror against its own population.³ One reason that this dirty war is less visible than those of other Latin American countries lies surely in the different role that Mexico played within international politics and within Latin America in the 1970s. The country was governed from 1929 to 2000 by the PRI (Party of the Institutionalized Revolution). Internationally it was considered a stable democracy, despite the hegemonic, authoritarian one-party system. This system granted the military a specific role as protector of the Mexican Revolution, the founding myth of the modern Mexican state.⁴

Mexican politics during the dirty war in the 1960s and 1970s was characterized by a double discourse. On the one hand, the PRI government was eager to be politically independent, rejecting any interference from the United States in solidarity with Latin America. It maintained diplomatic and economic relationships with Cuba and gave asylum to leftist political refugees from military dictatorships from all over Latin America. But on the other hand, to better combat Mexican opposition movements influenced by communism and the Cuban Revolution, Mexican generals were sent to the US Army School of the Americas to take part in counterinsurgency training programs.⁵

The dirty war period in Mexico is embedded in the global conflict of the Cold War and the US national security doctrine in Latin America.⁶ The Mexican dirty war is usually defined as beginning with the massacre of Tlatelolco in 1968 under President Gustavo Díaz Ordaz (1964–70) and continuing through the presidencies of Luis Echeverría (1970–76) and José López Portillo (1976–82). It is not clear when to mark the end of the conflict, since oppositional movements continued to be persecuted by the Mexican military even

after the “official” dirty war.⁷ The counterinsurgency war was directed against small urban and rural political and armed guerrilla movements. The most affected region of state repression was the municipality of Atoyac de Alvarez in the southern state of Guerrero, where the peasant-dominated guerrillas of the Party of the Poor had the broad support of the rural population. It was in this region where most enforced disappearances occurred and where I did field research with relatives of the disappeared and victims of torture.

The Liminality of the Victims of Enforced Disappearance

What does the disappearance of a person mean for their relatives? One paradigmatic example is the narrative of Doña Monica:

Many years ago, in 1974, soldiers took my husband. I have not heard anything from him since. I don't know why they took him. They thought that he had something to do with [the armed guerrilla movement of] Lucio Cabañas. Times were ugly back then, very hard! Soldiers came to my village and took away the people. They set up their headquarters in my house and took all my animals. After they took my husband I asked everywhere about him, but they never told me anything. I fight still today that they tell me what happened to him. We went to the city lots of times, to the protests, we suffered hunger and cold, and they didn't tell us anything! We are poor, so they don't listen to us. . . . Sometimes people ask me, why I didn't marry again or why I didn't go away. And I tell them, no! Because I don't know if my husband is dead, maybe one day he will return to the village. For me he is not dead, because I never threw dirt on his grave.⁸

This excerpt from the narrative of a peasant woman from a village in southern Mexico whose husband was abducted in the 1970s reveals the ongoing struggle in Mexican memory politics. The disappearance of a person destroys social and cultural structures and networks. Enforced disappearance is thus the dehumanization and desocialization of the other. Dehumanization processes in the course of state terrorism are carried out through the use of physical and symbolic violence by state agents, and the body of the constructed enemy becomes the central target of state power. The construction of a political body is central in this state crime, since, as Allen Feldman puts it, “the body becomes a spatial unit of power, and the distribution of these units in space constructs sites of domination.”⁹

For the relatives of the disappeared, this power and domination over bodies is a cruel form of psychological violence. It results in the denial of four important cultural categories that are related to ritual performance in every society: denial of bodies (i.e., of any knowledge about the location of relatives, be they

alive or dead); denial of mourning (an important psychological process that is denied, since it is impossible to mourn without knowing if the person to be mourned is dead or alive, provoking thus a permanent state of liminality); denial of mortuary rituals (i.e., the structuring of the world of the living and the dead); denial of memory sites (there is no place where to think of, visit, or talk in a symbolic way to the relative).

Relatives describe this liminal status of uncertainty as disquietness or perturbation that can be resolved only by knowing where the disappeared is. As Apolinar Cortes Román put it, "I would feel better if I would know where his remains are, if he is dead. Then I could go and bury him and so I could finally feel better."¹⁰ Or as Doña Roberta said about her disappeared husband: "If I would have a grave, I could go there, I could bring him flowers, I could cry there and I could talk to him. I would know where to go."¹¹ For the families of the disappeared, this status of liminality is a permanent catastrophe of identity, as Gabriel Gatti puts it.¹²

The human need to care for the dead is a strong motive for political activism in Mexico. The above-mentioned denials are part of a process of dehumanization by state actors. The victims transform these dehumanization practices with their political protest into a rehumanization process. I thus define rehumanization as the sum total of all the symbolic and political acts of victims that aim at compelling the government to recognize the disappeared. Discourses and acts of rehumanization mean that the disappeared are being given back their erased and stolen identities through political rituals by showing photographs of the disappeared in public spaces, calling out their names, giving testimonies, or calling for information on their whereabouts.

Since the 1970s, families of the disappeared have been calling for justice and the clarification of the more than twelve hundred cases of enforced disappearance in Mexico. One political motto of the family associations of the disappeared is "Alive they took them away, alive we want them back!" Over the years, the Mexican relatives of the disappeared organized not only nationally but also in transnational networks with victim groups that share the same trauma and are active in similar ritual political action throughout Latin America.¹³ In the 1980s the continuing protests of family members of the disappeared all over the world resulted in the establishment of the United Nations Working Group on Enforced or Involuntary Disappearances and later, in 2006, in the adoption of the UN International Convention for the Protection of All Persons from Enforced Disappearance that entered into force in 2010.¹⁴ Crucial in the definition of this crime against humanity and the category of victim is the re-



Figure 1.

Dofia Margarita holds a photograph of her husband, who was disappeared in 1974. Still today, she is requesting the clarification of his whereabouts.

spective government's continued refusal to acknowledge the abduction and the denial of information about the fate of the disappeared. The category victim is thus not only limited to the abducted

person: "Victim means the disappeared person and any individual who has suffered harm as a direct result of an enforced disappearance."¹⁵ Hence the families of the disappeared persons are legally considered victims with specific rights granted as, for example, to know the truth about the circumstances of the abduction.¹⁶

Victims are often described as a single homogeneous group or category. But ethnographic research among such victims shows that despite suffering the same fate, victim remains a heterogeneous category, among other things depending on how the loss was dealt with. This ranges from families of the disappeared becoming political actors and hence a visible victim to remaining silent and thus invisible. But there are also aspects of violent experiences in the dirty war that are still considered taboo among the families of the disappeared, for example, the question of sexual violence against women. Another topic not spoken about in public is the victims within the ranks of the military, that

is, the soldiers who had to kidnap, torture, and kill and who were killed and disappeared by state actors as well.

Out of the long struggle of politically active victim groups on local and global levels there thus emerged human rights instruments. Disappearance is the violation that has “most driven the development of transitional justice as distinct from a simple prosecutorial approach to violent pasts.”¹⁷ The discovery of the truth became an important aspect for the victims. In Mexico, the claim to wanting to know the truth and the ongoing political activity of the families of the disappeared led to the implementation of transitional justice mechanisms that, however, resulted in even more conflicts. Before moving on to the developments of the Mexican transition or, more precisely, the “Mexican solution” to transition, I first discuss some general critical aspects of the paradigm of transitional justice.¹⁸

Trouble with Transitional Justice: A Process of Liminality?

Can transitional justice processes have rehumanizing effects on victims instead of the promised positive outcomes? A range of critical literature on concepts of transitional justice focuses on the growing global industry of transitional justice, peace- and nation-building mechanisms, and the global tool kit available to experts of international organizations and NGOs that advise local governments and people on how to address past violence.¹⁹ Frequently instruments are implemented without taking into account the specificities of local political and sociocultural contexts. The critique from anthropology is that the models that are usually applied suggest a hierarchical, teleological, evolutionary, and on the whole linear transition from a conflict-laden past to “an idealized ‘post’ state of liberalism defined by western key terms, such as ‘rule of law,’ ‘civil society,’ ‘legal culture,’ ‘civilized,’ ‘human rights,’ ‘democratic.’”²⁰ As Zinaida Miller states, transitional justice mechanisms also result in continued invisibility for some victims, since the procedures often exclude issues of economic inequality and structural violence. Furthermore, new violence can be an outcome of the failure to address the role of social inequality in the past conflict.²¹ Transitional justice often has irreconcilable goals, as Bronwyn Anne Leebaw writes in reference to the fact that although law can be a tool for exposing abuses of power, law can also be used to obfuscate and legitimate the same abuses of power.²²

A field of critical transitional justice studies is thus emerging where anthropologists have also started contributing. The anthropological perspective focuses

on the micro perspective of these processes, and a whole new range of so-called counterethnographies have appeared that shed light on the sometimes negative outcomes of implemented transitional justice mechanisms in local realities.²³ These ethnographies focus on transitional frictions, that is, the “complexities of the encounter between global/transnational mechanisms and the local realities on the ground.”²⁴ It is crucial to take an ethnographic look at the micro perspective, the local level of postconflict societies, if one wants to localize these frictions. Only there on the ground can invisible processes become visible. These invisible processes often comprise marginalized narratives on events of a past war that are different from official or hegemonic narratives, different perspectives of people on how to deal with the past, and a heterogeneity of views of victims affected by violence and their alternative coping strategies for restructured community and individual life projects. To grasp these invisible processes, an ethnographic approach including participant observation and, most of all, testimonial narrative is necessary. Such narratives, many of them coming out of Latin America since the mid-1970s, are a way to give voice to the voiceless and reveal human rights abuses.²⁵

Transitional justice can be regarded as a conflictive political ritual. It is a process of reordering society after a violent conflict. This process of restructuring the world can be analyzed as a rite of passage. In ritual theory, events in the life cycle of every individual—like birth, coming of age, marriage, or death—are accompanied by various rites of passage. These life-cycle events are always accompanied by a threefold ritual with phases of separation, phases of liminality, and phases of integration.²⁶ Society is newly structured, and individuals adopt a new status after the rite of passage, for example, after a mortuary ritual a dead person adopts the status of an ancestor, a married woman becomes a widow. Rites of passage are important mechanisms that people in different cultural contexts perform to come to terms with life changes or to come to terms with events that disturb the everyday life of a community, such as war and violence. So what do rites of passage have to do with transitional justice?

As Naomi Roht-Arriaza and Javier Mariezcurrena state, most definitions of transitional justice do “not articulate what the state is ‘transitioning’ to.”²⁷ Different mechanisms of transitional justice are implemented in different regional and political contexts after mass atrocities, but the question of when and how transition actually ends remains. And who defines the end of transition? Local governments, global experts, or the victims of violence? Merging anthropological theory and politics, I want to adopt the theory of the threefold phases of rites of passage to transitional justice and consider the latter an unfinished

rite of passage. Transitional justice is a rite of passage in the liminal phase, as Alexander Hinton suggests.²⁸ It is the phase between an old and a new status of society. A phase between separation from the old status, a society in war and violence, and the phase of integration, that is, a desired new status of a society with justice and peace. Transitional justice is always the phase of *betwixt* and *between*, between separation and integration.²⁹ And the question remains, who defines the characteristics of integration, who decides if justice is achieved and that transition has ended?

Applying a victim-centered approach, I want to argue that it is only the victims of violence who can define when transition ends and when a new status of integration (in the ritual theory sense) has been achieved. The transitory phase or liminal phase in ritual is characterized by elements of uncertainty, crisis, and conflict; it is the conflictive phase between the old and the new status of an individual or of a society. Political rituals are also characterized by conflicts of interest between different actors within fields of power.³⁰ Hence, emerging conflicts and friction in transitional justice processes can be regarded as expected outcomes if analyzed as a political ritual in a liminal phase and not as a liberal goal where society can be molded according to a global tool kit and global norms.

Moving now to a specific local context, I want to give an example from my own fieldwork with victims of enforced disappearance in Mexico. This case study is a brief example to show the frictions of liminality in the transitional justice process.

The Liminality of Transitional Justice: Transition à la Mexicana

Transitional justice is a highly ambivalent political concept. The Mexican case is an example that reveals such ambivalences. The transition process in Mexico differs slightly from that of other Latin American countries where military dictatorships were replaced by democratically elected, civilian presidents. Mexico never had a military dictatorship. The transition was, instead, a shift of power from a one-party regime run by the PRI—the longest period of rule by any party in the world—to the opposition Partido de Acción Nacional (Party of National Action, PAN). The transition was commented on nationally and internationally as a significant step toward democracy.³¹ After the transition in 2000, when the PRI, which ruled Mexico for seventy-one years, lost the elections, the new Mexican president Vicente Fox (2000–6) of the PAN, began to speak about a time of change. Change meant the implementation

of a transitional democracy that would clarify all the crimes of the past and punish the perpetrators. Victims of the dirty war were recognized for the first time as important political actors.

This rhetoric of change, justice, and human rights created much hope among the relatives of the disappeared. They are a heterogeneous victim group of rural and urban origin, divided into several associations. The year 2000 was hence the starting point for what was hoped would be the transformation from a conflict society to a postconflict society. But, after ten years of transition, quite another picture has emerged on the ground.

The influence of political actors from the old authoritarian system soon became apparent. In 2001, despite promises to victims to install an independent truth commission, President Fox announced instead another mechanism to guarantee stability in the country: the creation of a governmental Special Prosecutor's Office for Attention to Matters Allegedly Related to Federal Crimes Committed Directly or Indirectly by Public Servants against Persons Linked to Social or Political Movements of the Past (FEMOSPP).³² This decision followed the Recommendation 26/2001 of the National Human Rights Commission (CNDH), which had been holding hearings on cases of enforced disappearance since 1990.³³

The problem was that the head of FEMOSPP was General Macedo de la Concha, who had been active under the PRI in the 1970. He appointed the Mexican attorney Carillo Prieto as special prosecutor, who indeed expressed the wish to fully clarify past crimes. He said on the topic of truth commissions that "with a truth commission, governments make a pact with the devil. Our office looks for ways to send the Devil to jail."³⁴ But he was blocked later by the generals. The perspective of the armed forces was that they had not acted illegally in the dirty war against the guerrilla groups, since they had only protected the constitutional order of the country.³⁵ This also explains why archives of the military and the secret services were opened and sent to the Mexican National Archive but that certain documents were still closed or censored.

Against this backdrop, families of the disappeared gave testimony in the local office of FEMOSPP in Atoyac, which first opened in 2002. Some of them say today that they were warned to remain silent by armed people whom they could not identify. A man who wanted to give testimony before the commission was killed in 2003. Locals suppose that the reason for the assassination of Zacarías Barrientos was the amount of information he had about perpetrators in the military, since he had been forced to collaborate with them back in the 1970s.³⁶

In 2004 charges of genocide were brought up against former president Echeverría for the massacre of Tlatelolco in 1968 and the Corpus Christi mas-

sacre in 1971. He was put under house arrest in 2006. But despite of protests of victims, human rights organizations, and politicians from the oppositional PRD, Echeverría was exonerated in 2009 by the Supreme Court of Justice from all the charges, since there was no proof of any crime committed. Two generals were also put on trial, Acosta Chaparro and Quiroz Hermosillo. But they were put on trial before a military court, since Mexico still exercised a military jurisdiction (*fuero militar*) in which members of the armed forces could not be tried before a civil court.³⁷ As expected by the victims, in 2004 a “military judge exonerated Acosta Chaparro because of ‘lost documents.’”³⁸ Referring to the charges against the military, Secretary of Defense Ricardo Clemente Vega García said of the Mexican public: “They should know how to forgive and how to take care so that ‘the nation doesn’t collapse.’”³⁹

FEMOSPP failed to deliver any positive results for the victims and was abolished in 2006. After four years of work, the final report of the team of investigators was handed over to Attorney Prieto and subsequently to President Fox. It was never officially authorized or published, a fact widely criticized by the academic experts who were the authors of the report and wanted to distribute to the Mexican public the “truth” about the dirty war. Since there was no official intention to release the report to the public, it was leaked by FEMOSPP employees to the press and the National Security Archive of the George Washington University.⁴⁰ Only the shortened version that was called the “Historical Report to Mexican Society” was presented to the public in a speech by Fox, who handed it over to legal experts for further investigation. Until today, the report “remains in limbo,” as Sergio Aguayo Quezada and Javier Treviño Rangel state, since it was never recognized as the “official truth.”⁴¹

No exhumation of mass graves took place, nor was the fate of an enforced disappeared clarified. Some family members of the disappeared, like Don Rodrigo from Atoyac, were disappointed and claimed: “This commission served only one purpose: they wanted to collect information about us again and they wanted to know what we are thinking and doing.”⁴² It soon became clear that both the Mexican president, who had to form an alliance with political actors of the PRI, and the armed forces had no political desire to prolong a public debate on the dirty war. The memory of the dirty war is still a matter of the countermemory of certain social groups, especially the relatives of the disappeared, not of the national or collective memory. There is no official commemoration of any of the events of the dirty war, nor are the crimes against humanity committed during this war part of government discourse, the school curriculum, or national memorial or museum culture. Few publi-

cations on the matter exist, and there is hardly any mention of the dirty war in official television or radio programs; only a few critical newspapers write about it. Certain power holders are eager to erase the memory of this war by ignoring the historical facts and the victims. Thus the continued protests of the countermemory groups of relatives of the disappeared are important. Yet instead of finding a satisfactory outcome for the transitional justice process, more conflicts and frictions arose.

Who Has the Right to Speak? Conflictive Outcomes of the Transitional Justice Process

The transitional justice process in Mexico caused a lot of local friction and conflicts. Some relatives of the disappeared even argue that they had been provoked deliberately by power holders to delegitimize and weaken the local agency of the victims. These frictions can be observed not only between victims, government officials, and perpetrators but also between the victims themselves. Questions of violence, of representation, of who had the right to speak, of adequate claims, and of co-optation or division became issues of dispute in victim groups, showing the conflictive politics of victimhood within transitional justice processes on the ground.

Reparation Payments: Eating Up the Dead?

Conflicts between victims became visible when the government started talking about monetary reparations for victims. The Mexican case shows that before instruments of transitional justice were employed, victims of the disappeared had the common claim of wanting to know the truth and the whereabouts of the disappeared, and of seeing the perpetrators punished. After the government installed a commission to investigate the claims and promised reparation payments and material compensation, the positions of the victims began to differentiate. One group wanted to accept the compensation money, while others found this to be inappropriate.

The victims' associations began to fight about what to demand of the so-called transitional justice regime. In the end no monies were paid and no promises were fulfilled, but the conflicts remain between victims on the local level. New power relations and antagonisms developed between victims, as they accused each other of betrayal or of collaboration. Some say that offering money was just a government strategy to divide the organized victims' groups. Many of the poor survivor victims were in fact tempted to accept the

financial compensation and let things be. Eleazar Peralta Santiago, sister of an enforced disappeared from Atoyac and leader of the Committee in Defense of the Clarification of 1970 to 1974, argued:

Well, the government won't tell us where our disappeared are, they won't punish the perpetrators, nothing! Well then, at least we should receive some compensation for all the things we lost in the past, like our houses, animals, lands. We are poor and gave all we had to search for our loved ones. Some of us have already died. Lots of relatives are now old and sick and poor and without any help from the government. It is the only thing that remains to claim, that at least, they repay us some of our losses.⁴³

But other victims in the victims' association AFADEM or Comité Eureka had a different viewpoint:

They announce this plan in order to convince mothers and relatives of the disappeared that they should accept something like a "reparation of damages," an economic compensation for the death of their loved ones. This plan is an insult to the dignity of the disappeared and their families. It is not reparation of damages; it is an additional offense! Beyond that it is a maneuver to avoid having to punish the criminals responsible for the detention and disappearance of our children. They are offering to have the accusation of enforced disappearance become homicide since this is a crime that does prescribe.⁴⁴

The discourses that emerged within and between victims' groups employed a cannibalistic terminology. For one victims' group, demanding money for the disappeared equaled eating up their relatives. The others in turn argued that some victims who had gained power and influence within the state system or in political parties during the struggle for recognition the disappeared, like Senator Rosario Ibarra (Comité Eureka), or who had gained access to the resources of NGOs or international institutions, such as Tita Radilla (AFADEM), had already eaten them up.

Some victims, like Rodrigo Juárez Alvarado from El Ticui, son of a disappeared, describe these disputes and divisions as part of the "well-known Mexican government strategy of co-opting and dividing internal enemies."⁴⁵ In general, these developments can be described as processes common within social movements that have been struggling for decades without making much progress. Feelings of despair, anger, frustration, and abandonment give rise to a general mistrust. The unfulfilled demands give way to a search for the guilty—also within the group's own ranks.

Access to Resources and the Question of Representation: Why Only Them?

Victims differ in their access to resources and knowledge, that is, in their degree of integration into national and international human rights NGOs and institutions or legal human rights instruments. These differences also emerge as a result of different forms of political activism, which include speaking out and becoming visible or remaining silent and fairly invisible as a victim. Many victims in Mexico come from rural, marginalized villages with poor living conditions, and some of them are illiterate. They have little access to legal resources. Other victims are from urban areas. The latter are often the leaders of the victims' associations. The members and leaders of the *Comité Eureka* and *AFADEM* are part of transnational networks of committees of the disappeared and participate in international forums and conferences. These organizations have access to lawyers, international human rights groups, and NGOs, and therefore to knowledge about legal procedures. The case of Rosendo Radilla, for example, was accepted at the Interamerican Human Rights Court (CIDH). The local committee of *AFADEM* won the case, the court declaring in 2009 that the Mexican state had been responsible for the disappearance of Radilla in 1974.

Despite this success, on a local level this event led to further distrust and conflicts among the victims. The case was questioned in the victims' groups, and doubts arose as to why the leaders of *AFADEM* had pursued only this case on an international level and no others. Like other families of the disappeared in Atoyac, Rodrigo Juárez Alvarado, son of a disappeared, asks: "We don't understand why they didn't put our cases there as well. Why only her? Why not our disappeared? Where is the difference?"⁴⁶ Some victims feel betrayed and blame the daughter, Tita Radilla, who is a leader in *AFADEM*. The authority of Rosario Ibarra, president of the *Comité Eureka*, was also questioned by victims in the villages of Atoyac, since they no longer feel represented by her: "She is in Mexico City, is now a Senator and earns a lot of money. And then she forgot about us. But only due to our joint struggles did she become somebody there," so says Doña Maria, daughter of a disappeared.⁴⁷

Denial of Testimonies

The complex field of making testimonies was also influenced by the failed transitional justice process. These victims' testimonies made for government officials and journalists gradually took on a different meaning. The hope that victims felt in the beginning when they told their stories shifted to feelings of betrayal. As a consequence, access to the victims' voices, to their memories,

experiences, and stories, became more difficult. For many, their truncated hopes, their resignation and humiliation, and their misplaced courage resulted in them refusing to say anything anymore.

The victims felt as if they had been used and exploited, giving their voices and memories to governments, journalists, writers, and filmmakers, without any official recognition. For Alejandro Castillejo Cuellar, this can be described as the violence of voicelessness.⁴⁸ He compared giving his testimony as part of an economy of extraction, where from the perspective of the victims their stories can become commodities.⁴⁹ For some victims in the villages of Atoyac, their voices and memories have become a source of power and resistance. Andrea Balthazar Vázquez from Rincón de las Parotas and wife of a disappeared, who was asked again and again to tell her story before government officials, now said with anger: “No, I won’t say anything anymore! And I know a lot about what happened back then, but no, I won’t tell you anything!”⁵⁰ And Doña Fidencia, wife of a disappeared, said:

First they started to come [to the village], the human rights [commission], they wanted facts and facts and facts. And then one day I told them, no, not anymore! Get out, I said, you are not doing anything anyway for us and so what for? I didn’t tell them anything anymore. Why? Because one gets angry that they are only asking and asking and then . . . nothing changes!”⁵¹

For many of the marginalized victims in the communities of Atoyac, silence and refusal to speak is an act of resistance. It is a strategy to handle the silence of the transition regime about the whereabouts of their disappeared family members. But despite these failures, many families continue their fight for the rehumanization of their disappeared. One aspect of this continued fight is the dedication of a space of memory, the House of Untamed Memory in Mexico City.

Space of Rehumanization: The House of Untamed Memory

In 2012 the Casa de la Memoria Indómita (House of Untamed Memory) in Mexico City was opened to the public. Founded by relatives of the disappeared organized in the Comité Eureka and with the support of H.I.J.O.S Mexico, an association of children of the disappeared, founded in a transnational network with H.I.J.O.S. Argentina, it is the first museum dedicated to the memory of the disappeared from the dirty war of the 1960s and 1970s. The House of Untamed Memory is located in the historic center of Mexico City in a small colonial building donated by the local city government. The idea of untamed memory symbolizes this struggle that began with the first hunger strike of the victims of the dirty war in 1978 and lasts until today.

Aimé Jezabel, one of the young museum workers, explained to me that the concept of the museums was not to provide a broad historical and political context for the subject but to touch visitors' emotions and senses.⁵² The exhibition opens with an art installation titled "Apariciones" (Appearances). In it the artist hung long strips of plastic with the names of 557 disappeared and the date of their abduction from the ceiling. In another room, the massacres of Tlatelolco (1968) and Corpus Christi (1971) are shown with wall-size posters and wooden sticks on the floor that symbolize the arms of the paramilitary Brigada Blanca. In another room the visitor can watch a propaganda video of the former secret service Dirección Federal de Seguridad from 1970 that demonstrates the perspective of the state perpetrators. In the same room, which is painted pink, there are other videos showing commercials, movies, and political speeches from the period, revealing the discrepancy between the official discourses of the México Rosa of modernization and democratization and the real world of political persecution.

Another artistic installation shows personal objects of the disappeared—such as glasses, a book, a tie or jewelry—cast in synthetic resin and hanging from the ceiling on lucent threads. In another room the walls are painted black, and the only object in it is a chair in the middle with a light bulb hanging above it, visualizing the interrogation and torture of victims. The testimonies of torture victims are heard from loudspeakers. Leaving this room, one enters the so-called waiting room, which is decorated like a living room. It has an armchair in it with a little table beside it and a telephone. On the walls there are pictures of the disappeared, each in a wooden or metallic frame and in the middle a coffee table and on the side a bookshelf. This "living room" symbolizes the eternal wait for information, by telephone or other means, about the fate of the disappeared. Next is an interactive room where visitors who know a disappeared person can write stories or anecdotes about the person in notebooks dedicated to these individuals.

Another room documents the public protest events of the Comité Eureka with posters, pictures, and slogans from the 1970s to the present. A typewriter in the middle symbolizes the hundreds of written petition letters to different presidents and politicians. On the walls there are pictures of Rosario Ibarra, the president of Comité Eureka. She is the mother of a disappeared person, and in first protests in the 1970s she became the public face of the "Doñas," the relatives, mostly women, of the disappeared. She became an ambiguous public figure for the relatives of the disappeared. On the one hand, she is honored and loved for her courage and strength to lead these protests. On

the other, especially the relatives in rural areas such as Atoyac de Alvarez, have distanced themselves from her because they think she is no longer fighting for all the disappeared but is interested more in earning money and prestige on their backs. The museum has been criticized for being too focused on her and in its selection of victims, highlighting some and hiding others, provoking a conflict-laden hierarchy of victimhood.

The House of Untamed Memory shows in a very impressive way and on several levels the fight for the rehumanization of the families of the disappeared since the 1970s. Although it works with little text information, it expresses the political claims and the difficult emotional state of ambiguity and liminality of the victims of the dirty war. From an anthropological perspective interested in social practices and discourses around the idea of a space of memory, it is important to note that while the museum is an important space of rehumanization, it has failed to date to become an outlet for all the relatives of the disappeared. The museum does not provide information about the associations in rural areas such as in Atoyac.

The distance between urban and rural victims of the dirty war and the lack of communication between them is a gap that is not easily closed. In the villages of Atoyac de Álvarez, most of the families of the disappeared have never heard of the House of Untamed Memory. Some of them claimed that activists from the urban Comité Eureka came to visit them a long time ago. Frictions about the right to represent the subject of the disappeared reveal that memory politics is also a conflict-laden debate between victims. To show local histories of the disappeared, a community museum is being constructed in Atoyac de Alvarez by local activists with the support of a local NGO. The museum is intended to meet the expectations of the rural victims and will comprise very local, personal histories of families of the disappeared and reflect their own perspective on the dirty war and the violent events that followed.

In victims' associations and in memorial museums, the core conflict is that some victims become more visible in the public sphere. This leads to dynamics of concealment and marginalization and to revictimization processes in the emergence of new hierarchies of victimhood. Who has the right to construct museums? Who has the right of representation in victims' associations? Who has the right to speak in them? What is shown and what is silenced? In these spaces of memory in Mexico, one of the most difficult transitional frictions to be dealt with are the new spaces of violence that have emerged in the context of the "war on drugs."

New Spaces of Violence: The “War on Drugs”

In 2006, when the work of the FEMOSPP ended, President Felipe Calderón (2006–12) came to power. He also used the transitional justice discourse and spoke of the need to clarify past crimes, opening a government office to continue the investigation of the disappeared. But instead of clarifying crimes, he has become responsible for new crimes. He proclaimed the “war on drugs,” gave the armed forces an unprecedented budget, and sent them out into the streets to combat organized narco-crime. His successor, President Enrique Peña Nieto, who began his six-year term in 2012, continues the same strategy. Tens of thousands of murdered, tortured, and mutilated bodies and around twenty-six thousand new cases of enforced disappeared have been the result.⁵³

The front lines in this war are blurred, and the categories of victim and perpetrator have blurred, since violence is employed by military, paramilitary, police, and several organized criminal actors. Historical and contemporary dirty war phenomena of dehumanization are merging with new categories of victims emerging. Mutilated bodies—sometimes unidentifiable and therefore nameless—are being exhumed from new mass graves, and desperate relatives sometimes do not know if their family members disappeared or were killed for political reasons or because of drug crimes. Government officials state that they were all disappeared and killed because of their relations to the drug cartels, calling the mass graves *narco-fosas* (“drug graves”) and denying any involvement by military or police forces.⁵⁴

Human rights organizations like Human Rights Watch or the UN Working Group on Enforced or Involuntary Disappearance argue that there is evidence that considerable crimes against humanity are being perpetrated by state forces, including torture, enforced disappearances, and extralegal executions.⁵⁵ And there is increasing complicity with organized crime by politicians, judges, and police and military forces that is leading at the same time to an overall rupture in social trust in state institutions.

Against this backdrop, new victims’ groups made up of family members of the disappeared have been founded, claiming truth and justice, just like the victims of past violence. Because of the widespread impunity of current perpetrators, victims’ groups and human rights organizations have begun linking up in a mass movement: the Movement for Peace with Justice and Dignity, which has been confronting the Calderón and Peña Nieto governments with testimonies of victims. In a new style of political performance, they are organizing public debates with politicians, ministers, and the president, organiz-

ing marches throughout Mexico and the border region of the United States to recollect narratives of violence and construct an archive and map of spaces of violence to make the invisible victims visible.⁵⁶ Furthermore, victims' associations and lawyers submitted a legal complaint against President Calderón before the International Criminal Court in The Hague in November 2011, accusing him of crimes against humanity and war crimes.⁵⁷

In a situation where the transitional justice process of clarification of the crimes of the past is merging with massive new violence, it is hard for victims to believe in any possible path to justice for past and present violence. The new conflict or, as some Mexicans say, the new dirty war, is likely to be the most difficult transitional friction to take place in Mexico.

Coming back to the liminality of transitional justice, I argue that if these processes do not emerge out of the liminal phase and pass on into the third phase of integration—the reordering of a society in which the diverse local needs of victims are acknowledged—transitional justice will only be part of the continued dehumanization of the victims. While violent conflict and war is concrete dehumanization, transitional justice that does not end in integration only continues this dehumanization symbolically. In the case of enforced disappearance, the catastrophe of identity that characterizes this crime persists for the victims.⁵⁸

Conclusion

Memory politics and the transitional justice process in Mexico have resulted in local frictions and conflicts, like in other Latin American countries. In addition to describing the conflict-laden spaces of memory of the heterogeneous group of relatives of the disappeared and showing their struggle for the rehumanization of the disappeared, in rural and urban areas this article suggests that the paradigm of transitional justice as implemented in postconflict societies can be considered a political rite of passage. But this rite of passage in the Mexican case has been characterized by its persistence in the liminal phase, having never achieved its goal of founding a just and peaceful society. This was the result of existing power constellations and the contradicting, often irreconcilable interests of different actors, and was interrupted by the flaring up of a new dirty war. Explaining transitional justice as a political ritual in its liminal phase might lead to explaining the shortcomings and conflicts within these processes.

Based on empirical research with victims of enforced disappearance in Mexico, the article compared the liminality of transitional justice to the state of

liminality of the families of the disappeared. This state of liminality of the victims is marked by the uncertainty and despair because of the denial of answers about the whereabouts of their disappeared family members by the transition regimes. Following a victim-centered approach, the article argues that only if the state of liminality of the victims of enforced disappearance is ended—by fulfilling people's individual and collective needs—can the liminality of the transitional justice process come to an end as well. Otherwise, the processes of transitional justice will do no more than continue the dehumanization of the victims.

The Mexican case suggests that the global discourse of transitional justice was used only as part of a political rhetoric of change where empty phrases about democratization, human rights, truth, memory, and justice served to legitimize the new power holders. It became clear that the structural culture of impunity is a deep-seated local reality and that a *de facto* amnesty had already been granted to the perpetrators. The transition process spared the perpetrators within the PRI government and the military because of the important role that both represent for national identity and state order. Finally, it could be said that the Mexican dirty war actually never ended, flaring up again in political violence since the presidency of Felipe Calderón and continuing under Enrique Peña Nieto. The military is again being given much space to promote with impunity the militarization of large areas of the country in its “war on drugs,” with thousands of murdered and displaced, and about twenty-six thousand disappeared victims. Again, families of the disappeared and murdered are constructing social countermemory groups and realizing protests in public spaces.

Victims' associations are important spaces of rehumanization of the disappeared. But these spaces do not exist without friction. Conflicts arise because of different perspectives and everyday realities of rural and urban activists and because of diverging claims within victims' groups. But despite these partly irreconcilable differences in perspective and the difficult struggle with government actors who try to erase the memory of the dirty war, these conflicts can be regarded as productive negotiations of contradicting interpretations of the conflict. Within these spaces, the families of the disappeared are fighting for the rehumanization of the victims of war, both those of the past and those of the present. The memory of the dirty war is still part of the countermemory of certain social groups and does not form part of national or collective memory so far. But to cite the popular song of the relatives of the disappeared: “The bad governments want to erase memory, but here are the *Dofías* to remind them of history.”⁵⁹

Notes

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1. Doña Maria, wife of a disappeared, interview with author, Atoyac de Alvarez, 2010. Testimonies were recorded during field research between 2007 and 2012 in twelve different villages in the district of Atoyac de Alvarez and the town of Atoyac in the state of Guerrero. The research is based on testimonies of relatives of disappeared people, torture victims, ex-guerrilla members, and human rights activists. The names have been changed to respect the wish for anonymity of some of the interviewees. Many relatives of the disappeared in rural, marginalized areas are still afraid to speak out because of fear of state repression and the ongoing political violence in the country. Regarding the prefix Doña (Miss) or Don (Mister), I use them when quoting from testimonies of victims whose full name will not be revealed. In Mexico, naming adult women and men using these prefixes followed by the first name is a sign of respect.
 2. Alexander Laban Hinton, *Transitional Justice: Global Mechanisms and Local Realities after Genocide* (New Brunswick, NJ: Rutgers University Press, 2010).
 3. See, e.g., Antonius Robben, *Political Violence and Trauma in Argentina* (Philadelphia: University of Pennsylvania Press, 2005); Macarena Gómez-Barris, *Where Memory Dwells: Culture and State Violence in Chile* (Berkeley: University of California Press, 2009); Frank Afflito and Paul Jesilow, *The Quiet Revolutionaries: Seeking Justice in Guatemala* (Austin: University of Texas Press, 2007); and Paul Sant Cassia, *Bodies of Evidence: Burial, Memory, and the Recovery of Missing Persons in Cyprus* (Oxford: Berghahn Books, 2007).
 4. Mónica Serrano, "The Armed Branch of the State: Civil-Military Relations in Mexico," *Journal of Latin American Studies* 27.2 (1995): 423–48.
 5. Juan Velez, "Al servicio de la repression," *Proceso*, October 6, 2002.
 6. Kees Kooning and Dirk Kruijt, eds., *Societies of Fear: The Legacy of Civil War, Violence, and Terror in Latin America* (London: Zed Books, 1999).
 7. For an analysis of armed opposition groups in Mexico, see Veronika Oikion Solano and Marta Eugenia García Ugarte, eds., *Movimientos armados en Mexico, siglo XX* (Mexico City: El Colegio de Michoacán, 2006).
 8. Doña Mónica, wife of a disappeared, interview with author, San Martín de las Flores, 2009.
 9. Allen Feldman, *Formations of Violence: The Narrative of the Body and Political Terror in Northern Ireland* (Chicago: University of Chicago Press, 1991), 8.
 10. Apolinar Cortes Román, interview with author, Atoyac, 2010.
 11. Doña Roberta, interview with author, San Vicente de Jesús, 2009.
 12. Gabriel Gatti, *El Detenido-Desaparecido: Narrativas posibles para una catástrofe de la identidad* (Montevideo: Ediciones Trilce, 2008).
 13. See, e.g., the networks in Latin America, Federation of Associations for Relatives of the Detained-Disappeared (FEDEFAM); in Europe and North Africa, the Euro-Mediterranean Coalition Against Enforced Disappearance and the Mediterranean Federation of Families of Disappeared (FEMED); in Asia, the Asian Federation Against Involuntary Disappearances (AFAD); and globally, the International Coalition Against Enforced Disappearances (ICAED).
 14. UN International Convention for the Protection of All Persons from Enforced Disappearance, article 2, www.icaed.org/fileadmin/user_upload/disappearance-convention.pdf (accessed August 4, 2013).
 15. Ibid., article 24.1.
 16. Ibid., article 24.2.
 17. Simon Robins, "Towards Victim-Centred Transitional Justice: Understanding the Needs of Families of the Disappeared in Postconflict Nepal," *International Journal of Transitional Justice* 5.1 (2011): 80.
 18. Mariclaire Acosta and Esa Ennelin, "The 'Mexican Solution' to Transitional Justice," in *Transitional Justice in the Twenty-First Century: Beyond Truth versus Justice*, ed. Naomi Roht-Arriaza and Javier Mariezcurrena (Cambridge: Cambridge University Press, 2006), 94–119.
 19. See Susanne Buckley-Zistel and Anika Oettler, "Was bedeutet: Transitional Justice?," in *Nach Krieg, Gewalt und Repression*, ed. Susanne Buckley-Zistel and Thomas Bader (Baden: Nomos, 2011), 21–37; and Rosalind Shaw and Lars Waldorf, eds., *Localizing Transitional Justice: Interventions and Priorities after Mass Violence* (Stanford, CA: Stanford University Press, 2010).

20. Hinton, *Transitional Justice*, 7.
21. Zinaida Miller, "Effects of Invisibility: In Search of the 'Economic' in Transitional Justice," *International Journal of Transitional Justice* 2 (2008): 266–91.
22. Bronwyn Anne Leebaw, "The Irreconcilable Goals of Transitional Justice," *Human Rights Quarterly* 30 (2008): 95–118.
23. Undine Kayser-Whande and Stephane Schell-Faucon, *Transitional Justice and Civilian Conflict Transformation: Current Research, Future Questions*. Working Papers No. 10 (Marburg: Center for Conflict Studies, 2009).
24. Hinton, *Transitional Justice*, 9.
25. Antonius Robben and Jeffrey Sluka, eds., *Ethnographic Fieldwork: An Anthropological Reader* (Oxford: Blackwell, 2009); John Beverley, *Testimonio: On the Politics of Truth* (Minneapolis: University of Minnesota Press, 2004).
26. See Arnold Van Gennep, *Übergangsriten* (1909; rpt. Frankfurt am Main: Campus Verlag, 2005); and Victor Turner, *Das Ritual: Struktur und Anti-Struktur* (1969; rpt. Frankfurt am Main: Campus, 1982).
27. Roht-Arriaza and Mariezcurrena, *Transitional Justice in the Twenty-First Century*, 1.
28. Hinton, *Transitional Justice*.
29. Victor Turner, "Betwixt and Between: The Liminal Period in Rites de Passage," in *The Forest of Symbols: Aspects of Ndembu Ritual* (Ithaca, NY: Cornell University Press, 1967), 93–111.
30. David Kertzer, *Ritual, Politics, and Power* (New Haven, CT: Yale University Press, 1988).
31. Joseph L. Klesner, "The End of Mexico's One-Party Regime," *Political Science and Politics* 34.1 (2001): 107–14.
32. For further analysis on the Mexican transitional justice process, see, e.g., Sergio Aguayo Quezada and Javier Treviño Rangel, "Fox y el pasado: La Anatomía de una capitulación," *Foro Internacional* 47.4 (190) (2007): 709–39.
33. ICTJ International Center for Transitional Justice, Mexico, 2008, www.ictj.org/sites/default/files/IC-TJ-Mexico-Periodic-Review-2008-English.pdf (accessed August 5, 2013). The CNDH recommendation documented 532 cases and acknowledged the forced disappearance of 275 persons. Organizations of families of the disappeared criticized that there was a higher number of about 1,200 cases of enforced disappearance that were not taken into account.
34. Quoted in Acosta and Ennelin, "Mexican Solution," 109.
35. Acosta and Ennelin, "Mexican Solution."
36. The victim was Zacarías Barrientos. See the documentary *El crimen de Zacarías Barrientos*, (dir. Ludovic Bonleux, 2008), DVD.
37. The fuero militar was changed in 2011 as a result of a ruling of the Inter-American Court of Human Rights in the case of the disappeared Rosendo Radilla.
38. Acosta and Ennelin, "Mexican Solution," 11.
39. Quoted in Gustavo Castillo García, "Acosta Chaparro, libre; recobrará grado militar," *La Jornada*, June 30, 2007.
40. See the FEMOSSPP original draft, www.gwu.edu/~nsarchiv/NSAEBB/NSAEBB180/index2.htm (accessed August 8, 2013).
41. Aguayo and Treviño, "Fox y el pasado," 728.
42. Don Rodrigo, son of a disappeared, interview with author, Atoyac, 2010.
43. Eleazar Peralta Santiago, interview with author, Atoyac, 2009.
44. Rosario Ibarra, "La Convención Internacional Contra la Desaparición Forzada de Personas," ¡Eureka! 5 (2007): 12.
45. Rodrigo Juárez Alvarado, interview with author, Atoyac, 2010.
46. Ibid.
47. Doña Maria, interview with author, Atoyac, 2010.
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49. Ibid.
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51. Doña Fidencia, interview with author, San Vicente, 2009.
52. Aimé Jezabel, interview with author, Mexico City, 2012.
53. See, e.g., Human Rights Watch, "Mexico's Disappeared: The Enduring Cost of a Crisis Ignored," www.hrw.org/news/2013/02/20/mexico-crisis-enforced-disappearances (accessed March 3, 2013).

54. For further analysis of the war on drugs, see, e.g., Marcela Turati, *Fuego Cruzado: Las víctimas atrapadas en la guerra del narco* (Mexico City: Grijalbo, 2011); and Anabel Hernández, *Los señores del narco* (Mexico City: Grijalbo, 2010).
55. Human Rights Watch, "Mexico's Disappeared"; UN Working Group on Enforced or Involuntary Disappearances, "UN Experts Express Concern for Impunity in Cases of Enforced Disappearances in Mexico," March 14, 2012, www.ohchr.org/en/NewsEvents/Pages/DisplayNews.aspx?NewsID=11963&LangID=E.
56. Movimiento por la Paz con Justicia y Dignidad. See <http://movimientoporlapaz.mx/> (accessed August 9, 2013).
57. Twenty-three thousand Mexicans signed the petition that asks the ICC to investigate the war crimes of President Calderón, Minister of Public Security Genaro García, Minister of Defense Guillermo Galván, and Minister of the Navy Mariano Saynez, as well as Joaquín "el Chapo" Guzmán, head of the Sinaloa cartel. See Gloria Leticia Díaz, "Demandarán a Calderón en La Haya por crímenes de guerra y lesa humanidad," *Proceso*, October 10, 2011.
58. Gatti, *El Detenido-Desaparecido*.
59. "Las Doñas," (song [*corrido*]) by María del Rosario Piedra, in *Eureka!* 2 (2007): 5.